
Case	Title / Nature of Case
9:00 AM	
Line 1	
23-CIV-06084	RIGOBERTO CONTRERAS, ET AL VS. COUNTY OF SAN MATEO

RIGOBERTO CONTRERAS
COUNTY OF SAN MATEO

PATRICIA M. GARNER
ADAM M STODDARD

Defendant's Motion for Leave to File an Amended Answer to the Complaint

TENTATIVE RULING:

Defendant's motion for leave to file an Amended Answer to the Complaint is unopposed and is GRANTED.

California has a policy in favor of permitting amendment. Code of Civil Procedure Section 473(a); *see also, Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939. Where the opposing party will not be prejudiced, it is error to deny leave to amend. *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530. Here, defendant seeks to amend its initial Answer, and there is no showing of any prejudice.

The proposed First Amended Answer to the Complaint which was attached as Exhibit E to the March, 2, 206 Stoddard Declaration, shall be filed by June 22, 2026.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order. The Court will prepare the Order after hearing.

9:00 AM

Line 2

24-CIV-00269 HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Plaintiff's Motion to Compel (*mis-captioned by Plaintiff as*) Further Responses to Plaintiff's Request for Production of Documents, Set No. One (*but substantively it is to Compel on Form Interrogatories, Set No. One, Special Interrogatories, Set No. One, and Requests for Admissions, Set No. One*)

TENTATIVE RULING:

Plaintiff Hamid Khazaeli's Motion to Compel Further Responses from David A. Brewer, Former NT Corporation, Notify Technology Corporation, Paul F. Depond, Robert Polychron (collectively "defendants") filed August 26, 2025, is DENIED in entirety.

Sanctions in the amount of \$3,150.00 are GRANTED to defendants as prevailing party to the motion. (Code Civ. Proc., §§ 2023.010, 2023.030, subd. (a), 2030.300, subd. (d) & 2033.290 subd. (d).)

Initially, the Court notes that Plaintiff's original and/or amended Notice of Motion, stated that the instant matter was set before a prior assigned Judge. However, effective April 13, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable Michael L. Mau, Department 20, now located at 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the required Amended Notice "must specify" the location of the hearing].)

The Court notes the notice of motion is mis-captioned as a "Motion to Compel Further Responses to its Request for Production of Documents, Set No. One" because the motion is made pursuant to Code of Civil Procedure sections 2033.290 [motion to compel further response to requests for admission]; 2030.300 [motion to compel further response to interrogatories], and 2030.220 [form of answers in response] and seeks responses to "Plaintiff's Form Interrogatories General, Set No. One, Nos. 2.6 and 2.11 from DEPOND and POLYCHRON, Nos. 4.1, 12.1, 12.2, and 15.1 from Defendants; Plaintiff's Special Interrogatories, Set No. One, Nos. 1-3 from BREWER, FNTC, NTC, DEPOND, and POLYCHRON; Plaintiff's Requests for Admissions, Set No. One, Nos. 1, 3-11 from BREWER, Nos. 1-11 from FNTC, Nos. 1, 3-11 from DEPOND, Nos. 1, 3-11 from POLYCHRON; and issue of DocuSign signatures." (NOMM filed August 26, 2025, pp.1-2.) Plaintiff is reminded to properly caption and title its pleadings correctly.

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers— Michael Ballard, Siu Po Lee and